

DEPARTMENT OF VETERANS AFFAIRS

SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH FAR 13.5

Acquisition Plan Action ID: 36C260-23-AP-4363

JOFOC Log Number: FY24 - NCO 20 - 875

1. **Contracting Activity:** Department of Veterans Affairs (VA), Veterans Healthcare Administration (VHA), Regional Procurement Office West (RPO-W), Network Contracting Office (NCO) 20, on behalf of Veterans Integrated Service Networks (VISN) 20. 2237 # 496-25-3-488-0028
2. **Nature and/or Description of the Action Being Processed:** This procurement is for a firm fixed price purchase order for annual maintenance, support services and software licenses for Par Excellence weight-based inventory management systems (WBIMS) installed in facilities throughout VISN 20.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The proposed procurement is for annual maintenance, support services and software licenses to include the following:
 - PX9310 PAR Server/Client License
 - PX9325 PAR Client Unlimited Support
 - PX9395 PAR Vision Unlimited License
 - PX9353 PAR Bins Replenishment Only License
 - PX9480 Barcode/Bluetooth Scanner Support
 - PX9425 Controller Support
 - PX9420 PAR Scales Support
 - PX9461 PAR Secure Aux/Mass Med Cabinets Support
 - PX9460 PAR Secure Support

The period of performance will be a one-year period, commencing on 05/01/2025.

Location	Period of Performance	Total
Anchorage	05-01-2025 -04-30-2026	
Boise	05-01-2025 -04-30-2026	
Portland	05-01-2025 -04-30-2026	
Puget Sound	05-01-2025 -04-30-2026	
Roseburg	05-01-2025 -04-30-2026	
Spokane	05-01-2025 -04-30-2026	
Walla Walla	05-01-2025 -04-30-2026	
White City	05-01-2025 -04-30-2026	
	SUBTOTAL	

4. **Statutory Authority Permitting Restricted Competition:**

Effective Date: 11/15/24

REVISION: 01

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FAR 13.5 Simplified Procedures for Certain Commercial Items. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. § 1901 and is implemented by FAR 13.106-1(b)(2) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

(X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements

5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** PAR Excellence Systems, Inc. (PAR) is the exclusive designer, developer, manufacturer, and maintainer of its proprietary, highly specialized, fully automated, turn-key, weight-based inventory management systems (WBIMS), its associated software, and the exclusive provider of all maintenance and support services. PAR Excellence Systems, Inc. (PAR) does not authorize any reseller of our products or services.
6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** There is no other potential source qualified, nor certified to perform maintenance on the existing VA Par Excellence equipment and systems. Par Excellence has proprietary rights to maintain the equipment and systems already installed.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** Price reasonableness will be based on Comparison of Proposed Prices with Prices Found Reasonable on Previous Purchases (FAR 13.106-3(a)(2)(ii)). The Contracting Officer anticipates the cost of this procurement to be fair and reasonable. In addition to the above information, Par Excellence provides lower long-term costs; provides the latest software upgrades consistent with regulatory standards, and strictly adheres to established privacy principles, use of customer information, guidelines, and federal and state statutes and regulations, regarding privacy and confidentiality; including those measures and practices required under the Health Insurance Portability and Accountability Act of 1996. It is best value to the government to award a contract with Par Excellence, where the installation and service infrastructure is already in place.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Due to the proprietary nature of this procurement limited market research was conducted. The software licensees, service and support is for VA owned equipment installed throughout the VISN and no other vendor is authorized to distribute or service the equipment.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** No other facts supporting other than full and open competition.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** With a proprietary letter on file, there is no reasonable expectation of at least two small businesses. Therefore, there is no reasonable expectation of at least two small businesses for this service.
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** The maintenance, support and software licenses can only be procured from Par Excellence directly. The

VISN will survey the market place the future for vendors that can perform the requirements needed. However, there are no vendors capable at this time.

12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

BARTHOLOMEW COLEMAN
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BARTHOLOMEW COLEMAN
Date: 2025.03.31 13:43:25
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Bart Coleman, COR
VISN 20 Program Specialist
496 VISN 20 Logistics

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)**

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

GREGORY WATSON
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GREGORY WATSON
Date: 2025.03.31
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Gregory Watson
Contracting Officer
Network Contracting Office 20

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

KRYSTAL WEEKS
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KRYSTAL WEEKS
Date: 2025.04.01
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Krystal Weeks
Branch Chief (Medical Equipment)
Network Contracting Office 20